

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aiyanna Milligan	Team: Squad #06	CCRB Case #: 201702828	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 04/05/2017 11:40 PM	Location of Incident: West 135th Street and 5th Avenue	18 Mo. SOL 10/5/2018	Precinct: 32
Date/Time CV Reported Thu, 04/06/2017 12:14 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/12/2017 11:00 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			PBMN SU
2. Officers			PBMN SU
3. LT Brian Holshek	00000	944657	PBMN SU
4. POM Stephen Guiney	24542	927177	PBMN SU
5. POM John Nugent	16211	950962	PBMN SU
6. POM Mark Ruppert	22425	954305	PBMN SU

Officer(s)	Allegation	Investigator Recommendation
A . LT Brian Holshek	Abuse: Lieutenant Brian Holshek stopped the vehicle in which § 87(2)(b) was an occupant.	A . Complainant Uncooperative
B . POM Stephen Guiney	Abuse: Officer Stephen Guiney stopped the vehicle in which § 87(2)(b) was an occupant.	B . Complainant Uncooperative
C . POM John Nugent	Abuse: Officer John Nugent stopped the vehicle in which § 87(2)(b) was an occupant.	C . Complainant Uncooperative
D . POM Mark Ruppert	Abuse: Officer Mark Ruppert stopped the vehicle in which § 87(2)(b) was an occupant.	D . Complainant Uncooperative
E . Officers	Abuse: Officers searched the vehicle in which § 87(2)(b) was an occupant.	E . Complainant Uncooperative
F . Officers	Abuse: Officers damaged § 87(2)(b)'s property.	F . Complainant Uncooperative
G . An officer	Discourtesy: An officer acted discourteously toward § 87(2)(b)	G . Complainant Uncooperative
H . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	H . Complainant Uncooperative
I . An officer	Abuse: An officer refused to provide his shield number to § 87(2)(b)	I . Complainant Uncooperative

Case Summary

On April 6, 2017, § 87(2)(b) filed this complaint with IAB via telephone, generating log number 17-12394. The complaint was received at the CCRB on April 12, 2017, via log number 2017-12813.

Between April 13, 2017 and April 19, 2017, two attempts to contact § 87(2)(b) via phone were made. On each occasion there was no answer and a voicemail was left. On April 13, 2017, a please call letter was sent to § 87(2)(b) via mail and email. The letter was not returned to the CCRB. On April 20, 2017, § 87(2)(b) was contacted via phone, at which time he made a threat against a member of service. No interview was rescheduled at this time. On April 24, 2017, a call was placed to § 87(2)(b) and a voicemail was left. On that same day, § 87(2)(b) contacted the CCRB via phone. Due to the recent threat that was made, he was informed that he could submit a written notarized statement. § 87(2)(b) mentioned his intent to sue the CCRB and opted to end the call in order to confer with his lawyer. On April 26, 2017, § 87(2)(b) was contacted via phone, at which time he provided his attorney's contact information. On that same day, a call was placed to § 87(2)(b)'s attorney, § 87(2)(b) who confirmed § 87(2)(b) wanted to participate. § 87(2)(b) was also informed of the written notarized statement.

On May 8, 2017, a New York City Department of Correction search revealed that § 87(2)(b) was not incarcerated. On May 10, 2017, § 87(2)(b) was contacted via phone, at which time he was offered the option of submitting his written notarized statement in either Arabic or English as he stated he spoke both languages. § 87(2)(b) eventually disclosed that he cannot write in either language, and once again mentioned his intent to sue the CCRB. § 87(2)(b) was offered the option of providing a verified phone statement, but he declined, refused to provide a statement, and stated he wants to sue the CCRB.

As of the date of this report, § 87(2)(b) has missed two appointments in his previously filed complaint. In addition, § 87(2)(b) has failed to prepare a written, notarized statement or agree to provide a verified telephone statement to the CCRB. It should also be noted that during the past two months, § 87(2)(b) has filed one prior complaint and four additional complaints since this reported incident and has failed to participate in any of the complaints. Therefore it is recommended that this case be closed as **complainant uncooperative**.

Squad: 6

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date